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**Probate Calendar for Tuesday September 29, 2026
9:00 a.m. in Department 4, with Judge Tana L. Coates Presiding**

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR, DISMISSED, DENIED OR CONTINUED:</u>				
5	22PR-0402	Estate of: Antonette Waiton	OSC re Inventory and Appraisal cont'd 3/4/25, 11/18/25, & 1/28/26	CONTINUED LIST. <i>The matter is continued to March 2, 2027 at 9:00 a.m. in D-4. All additional items must be filed by February 2, 2027.</i>
11	25PR-0119	Estate of: James Wilde, Sr.	Petition Filed: 04/03/2026 - Final Distribution	CONTINUED LIST. <i>The Petition is continued to February 16, 2027 at 9:00 a.m. in D-4. All additional items must be filed by January 19, 2027. The Court notes a Petition has been filed for the Appointment of a Successor Personal Representative. The Petitioner in that matter should review the removal and appointment of successor process before the February 16, 2027 hearing. The new Petition appears to contain a purported Will that was not admitted to probate. It appears from the Will provided that Mark Wilde, Sr. has been disinherited from the estate and is not nominated to act as personal representative. This will need to be addressed.</i>
16	25PR-0363	Estate of: Rudolph Robinson	Petition Filed 10/24/2025 [DUE 8/25/26] - Spousal	DENIED LIST. <i>At the last hearing on June 23, 2026, additional materials were ordered to be filed by August 25, 2026. Nothing has been filed to address the below. As such, it</i>

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			Property Petition; cont'd 6/2/26, 6/23/26	<i>is recommended the matter be denied. If the matter is not denied, the following issues are noted from the last hearing:</i> <i>1. The Declaration filed on May 14, 2026 indicates that the E-trade account, the subject of this Petition, was created at approximately the time of marriage in 2014. The Declaration filed by the Attorney on June 1, 2026 indicates the account was opened August 13, 2013. The parties married April 18, 2014. Thus, the account was created prior to marriage. Petitioner alleges \$5,000 from a joint account held in 2013, prior to marriage, was used to open the account. These funds were not community property. It is unclear under what legal authority this asset is community property. Were the funds transmuted by later writing? The Petition does not so state, and indicates the opposite. There does not appear to be legal support to transfer the property under the theory currently before the Court.</i> <i>2. The matter is recommended for denial as to the community property allegation. The Petition could be approved as a separate property asset with portions of the asset passing to the issue of a deceased sibling. The Court lacks information to determine the distribution under Probate Code section 6401 subsection (c)(2). It is unclear if the Petitioner still wants an evidentiary hearing. Notice of Hearing to the issue of the deceased siblings of further proceedings is needed before an evidentiary hearing can be set.</i>

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				3. <i>A proposed order is needed.</i>
22	26PR-0284	Estate of: John Rice	Petition Filed: 08/20/2026 WILL	CONTINUED LIST. <i>The Petition is continued to October 20, 2026 at 9:01 a.m. in D-4. All additional items must be filed by October 13, 2026. The following is noted:</i> 1. <i>All persons entitled to notice were not served with the Notice of Petition to Administer Estate. (JC Form DE-121; Prob. Code, § 8110.) Specifically, the parties who are named in the will attached to the Petition but not included in Item 8 of the Petition as noted below. A waiver of notice and the warnings under the DE-121 form is acceptable.</i> 2. <i>The caption and body of the Petition do not match. Item 2b requests Petitioner be appointed as executor, but the caption indicates Letters of Administration with Will Annexed is requested. This request in the caption appears to be an error as Petitioner is the nominated executor in the Will provided. Confirmation is needed.</i> 3. <i>Item 8 of the Petition is incomplete. It requires that the petition list “all persons mentioned in decedent’s will.” (See Super. Ct. San Luis Obispo County, rule 11.303.)</i>
23	26PR-0287	Estate of: William Kengel	Petition Filed: 8/21/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to November 3, 2026 at 9:01 a.m. in D-4. All additional items must be filed by October 13, 2026. The following is noted:</i> 1. <i>Item 1 of the Petition is incomplete. The name of the newspaper that publication will occur in must be specified.</i>